

24AHCV00117 24AHCV00117

County: los-angeles
Division: Civil Law and Motion
Department: 3
Hearing date: 2026-08-03
Motion: MOTION FOR SANCTIONS
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Case Number: 24AHCV00117 Hearing Date: August 3, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

DONALD
GONG TOY,

Plaintiff(s),

vs.

EDDIE
NAVARRO, et al.,

Defendant(s).

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CASE NO.: 24AHCV00117

[TENTATIVE]

ORDER RE: MOTION FOR SANCTIONS

Dept.

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8:30

a.m.

August 3,

2026

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I.

INTRODUCTION

On July 2, 2026, plaintiff Donald Gong Toy ("Plaintiff") filed this motion for evidentiary or issues sanctions for defendant Heriberto Navarro's ("Defendant") failure to serve verified responses, without objection, to Plaintiff's form interrogatories, special interrogatories, and inspection demands. The proposed evidentiary sanctions would prohibit Defendant from introducing into evidence at trial any document or testimony to contest the value of the 1966 Lincoln Continental Defendant allegedly converted, the price obtained at the vehicle's lien sale, or the amount of Plaintiff's damages at trial.

The proposed issue sanction would establish that the value of the 1966 Lincoln Continental and the price obtained at its lien sale are as Plaintiff contends, and Defendant may not dispute the amount of Plaintiff's damages as to those matters.

Plaintiff also seeks monetary sanctions in the amount of \$4,200, representing the reasonable expenses, including attorney's fees, incurred by Plaintiff in bringing this motion.

The motion is unopposed.

II.

DISCUSSION

A discovery sanction requires only

"(1) ... a failure to comply ... and (2) [that] the failure ... be wilful." (Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc. (2008) 163 Cal.App.4th 1093, 1102.)

It is undisputed that on October 9, 2025, Defendant was ordered to serve verified responses, without objections, to Plaintiff's Form Interrogatories (Set One), Special Interrogatories (Set One), and Requests for Production of Documents (Set One) within 20 days. The Court also imposed monetary sanctions on Defendant, payable within 20 days. This deadline expired on or about October 29, 2025, without any response from Defendant or defense counsel. On October 31, 2025, defense counsel was relieved and Defendant became self-represented.

On June 17, 2026, Plaintiff's counsel sent Defendant's representative a reminder that monetary sanctions and discovery responses were past due, attached a copy of the discovery requests, and demanded responses by June 19, 2026. Plaintiff's counsel stated that failure to respond would result in this motion for sanctions. Defendant did not respond to this correspondence, serve any discovery responses, or provide any justification for his refusal to participate in discovery. Accordingly, Plaintiff's motion for sanctions is GRANTED in part and Defendant is prohibited from introducing into evidence at trial any document or testimony regarding the value of the 1966 Lincoln Continental Defendant allegedly converted or the price obtained at the vehicle's lien sale. The evidentiary sanction does not

apply to any of Plaintiff's attorneys' fees which must be proven in a post-trial motion as costs of suit.

The Court declines to impose an issue sanction establishing the value of the vehicle "as Plaintiff contends" because the Court will not provide Plaintiff a blank check for his damages.

Plaintiff's request for monetary sanctions is GRANTED in the reduced amount of \$1,200, consisting of 4 hours at Plaintiff's counsel's billing rate of \$300, payable within 5 days of the date of this Order.

III.

CONCLUSION

Plaintiff's motion for evidentiary sanctions is GRANTED in part and Defendant is prohibited from introducing into evidence at trial any document or testimony regarding the value of the 1966 Lincoln Continental Defendant allegedly converted or the price obtained at the vehicle's lien sale.

Plaintiff's request for monetary sanctions is GRANTED in the reduced amount of \$1,200, payable within 5 days of the date of this Order.

Plaintiff
to give notice.

Dated
this 3rd
day of August 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided

on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.